

Court No. - 39

Case :- WRIT - C No. - 34179 of 2022

Petitioner :- Vishram Prasad Chaurasiya

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Awadh Behari Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

The challenge is to the determination of the dues of electricity by the order dated 1.10.2022 passed by the Executive Engineer concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

The said order is being challenged on the ground that the recovery certificate dated 26.7.2022 and the attachment warrant has been issued on 27.9.2022 in defiance of the judgment and order dated 12.9.2022 passed by this Court in Writ-C No. 23347 of 2022 filed by the petitioner herein.

It is sought to be submitted that the determination as has been done in the order dated 1.10.2022 is for a lesser amount than what has been shown in the recovery citation dated 26.7.2022.

The contention of the learned counsel for the petitioner is that the State Authorities have erred in issuance of the recovery citation and further attachment warrant on 27th September, 2022, by pursuing the recovery despite the order passed by this Court on 12.9.2022 relegating the petitioner to approach the Executive Engineer concerned.

On the said submission, we raised a pointed query to the counsel for the petitioner as to whether the order dated 12.9.2022 has been served upon the State Authorities to which no answer could be received by us. Even otherwise, the recovery citation dated 26.7.2022 is prior to the order dated 12.9.2022 passed by us.

Now the determination has been done about the dues of the petitioner in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 by the order dated 1.10.2022.

In case, the petitioner is aggrieved by the said order, it is open for him to file appeal.

However, the respondent department is under obligation to send

a proper fresh recovery certificate to the State authorities pursuant to the order dated 1.10.2022 and intimate them that the recovery certificate dated 26.7.2022 and the attachment warrant dated 27.9.2022 shall not be pursued.

The writ petition is **disposed of**, accordingly.

Order Date :- 25.11.2022

Brijesh